

Atlantic Association of Geomatics and Planning (AAGP)
By-Law

Adopted September 24, 2024

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This By-Law is to lay out the function and rules of the organization. It sets out definitions, procedures and qualifications for membership. The organization shall be known as the Atlantic Association of Geomatics and Planning (AAGP) herein referred to as “the Association”.

1. Objectives

- (1) To advance the education and experience of Planning Technicians, and others in related technical disciplines, in the Atlantic Region.
- (2) To promote a high standard of competence and conduct in the discipline of Community and Environmental Planning.
- (3) To promote the Association and interests of those engaged in the discipline of Community and Environmental Planning.

2. Definitions

- (1) Association - means the Atlantic Association of Geomatics and Planning (AAGP).
- (2) Atlantic Region - means the four Atlantic Provinces; namely, Newfoundland and Labrador, New Brunswick, Nova Scotia and Prince Edward Island.
- (3) Community and Environmental Planning – means a multi-disciplinary approach that focuses on the development of the man-made environment and the natural environment with an aim to support the development of communities and improve the quality of living for its citizens.
- (4) Council - means the management of the Association consisting of the President, Vice-President, Past President, Secretary, Treasurer, Media Relations Officer, Nova Scotia representative, New Brunswick representative, Newfoundland representative, and Prince Edward Island representative.
- (5) Executive Council - means the President, Vice President, Past President, Secretary, Treasurer, and Media Relations Officer.
- (6) Membership Committee - means Council.
- (7) Member - means a member of the Association. Membership in the Association is divided into five classes, namely:
 - (a) Full Members
 - (b) Associate Members
 - (c) Student Members
 - (d) Retired Members
 - (e) Lifetime Members

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- (8) Planning Technician - for the purpose of this By-Law, a Planning Technician shall be defined as any professional engaged in a primarily technical capacity for the purposes of Community and Environmental Planning. Duties shall include but not be limited to Research, Mapping, and Analysis using Geographic Information Systems and related tools.
- (9) Resident - means a person who resides in the Atlantic Region.

3. Geographic Area of Operation

- (1) The operations of the Association are to be carried out in the four Atlantic Provinces; namely, Newfoundland and Labrador, New Brunswick, Nova Scotia and Prince Edward Island.

4. Admission to Membership

- (1) The Council by an affirmative vote of two-thirds (2/3) of its members present at a properly constituted Council meeting, may elect in accordance with this By-Law, any person to membership in the Association.
OR
by another form of correspondence such as telephone or electronic mail.
- (2) An applicant for membership who has not been accepted for admission to membership may initiate a new membership application one (1) year after such refusal.

5. Applications

- (1) Application for election to membership may be made to the Secretary of the Association on a form prescribed for that purpose by the Council.
- (2) The Secretary shall notify the applicant of acceptance or reason for refusal, noting the required membership fee.

6. Access to By-Law

- (1) The Council shall provide access to the By-Law to all Full members, Associate members, Student members, and Lifetime members.

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7. Qualifications for Membership

- (1) FULL MEMBERSHIP may be granted at the discretion of the Membership Committee to a resident who has applied to be a member and who has:
 - (a) Graduated from a program related to Geomatics or Planning of an accredited post-secondary institution with more than 1 year of work experience in the Geomatics or Planning fields.
 - OR
 - (b) Direct experience working in Geomatics or Planning for four (4) years with no formal education in the field.
- (2) ASSOCIATE MEMBERSHIP may be granted at the discretion of the Membership Committee to an individual who has applied to be a member and who has:
 - (a) Graduated from a program related to Geomatics or Planning of an accredited post-secondary institution, with less than 1 year of full-time work experience in the Geomatics or Planning fields.
 - OR
 - (b) Direct experience working in Geomatics or Planning of less than 4 years with no formal education in the field.
- (3) STUDENT MEMBERSHIP may be granted at the discretion of the Membership Committee to an individual who is enrolled in a program and / or course related to Geomatics or Planning from an accredited post-secondary institution.
- (4) RETIRED MEMBERSHIP may be granted at the discretion of the Membership Committee to an individual who has retired from working in Geomatics and Planning.
- (5) LIFETIME MEMBERSHIP may be granted at the discretion of the Membership Committee to a Full Member who has continuously and tirelessly contributed to the Association above and beyond any expectations of the Association.

8. Membership Rights, Privileges and Responsibilities

- (1) A FULL member may in accordance with this By-Law:
 - (a) be elected to Council; and
 - (b) attend and take part in discussions at general meetings; and
 - (c) vote on any matter; and
 - (d) be appointed to any committee; and
 - (e) resign from their membership in the Association.

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- (2) An ASSOCIATE member has all the rights and privileges, in accordance with this By-Law, as a Full member, except they may not vote on any matter or be an officer or councillor of the Association.
- (2) A STUDENT member must be enrolled in a program and / or course related to Geomatics or Planning from an accredited post-secondary institution. A student member has all the rights and privileges, in accordance with this By-Law, as a Full member, except they may not vote on any matter or be an officer or councillor of the Association. A student member is eligible to apply for Association-funded academic scholarships or awards.
- (4) A RETIRED member has all the rights and privileges, in accordance with this By-Law, as a Full member, except they may not vote on any matter or be an Executive officer of the Association.
- (5) A LIFETIME member has all the rights and privileges, in accordance with this By-Law, as a Full Member and may vote on any matter or be an officer or councillor of the Association.

9. Adherence to By-Law and Codes

- (1) A person who is accepted for membership agrees:
 - (a) to observe the By-Law; and
 - (b) to do their utmost to ensure that all other persons admitted to membership also adhere to this agreement.

10. Workshops

- (1) Workshops will be open initially to FULL and ASSOCIATE members respectively. Such members will have until an announced cut-off date to register for a workshop after which time the workshop will be open to STUDENT members and NON-MEMBERS respectively. STUDENT members and NON-MEMBERS may register for a workshop prior to the announced cut-off date however will be placed on a waiting list in the order of received registration forms and will be informed after the cut-off date as to whether they have a confirmed seat at the workshop.

11. Annual Fees

- (1) Full members, Associate members, Student members, and Retired members are liable each year for annual fees as the Council may from time to time determine.

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- (2) Annual fees are due and shall be paid by the first day of June of each year for the proceeding year.
- (3) A Lifetime member has a valid membership for the rest of their life and is not required to renew.
- (4) Invoices for membership renewals will be issued to current members no later than the first day of May of each year and must be paid in full no later than the first day of June of each year to maintain membership in the Association.

12. Arrears

- (1) When a Full member, Associate member, Student member, or Retired member is in arrears of fees in excess of 30 days after June 1st, they shall cease to hold membership of any class but may obtain reinstatement for membership upon submission of a new application.
- (2) Council shall review the application and make a decision.

13. Composition of Council

- (1) The council of the Association shall consist of eleven members in good standing comprised of seven Officers and four Councillors all of whom shall be elected in accordance with the By-Laws.
- (2) Officers
Officers of the Executive Council are:
 - (a) President
 - (b) Past President
 - (c) Vice President
 - (d) Secretary
 - (e) Treasurer
 - (f) Media Relations Officer
- (3) Councillors
Councillors shall consist of the following members:
 - (a) Elected Provincial Representatives
- (4) Only a Full member who has already served as a member of the Council is qualified to be elected as President.
- (5) Only a Full member may be elected as President, Vice-President, Secretary,

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Treasurer, or Media Relations Officer.

14. Provincial Representatives

- (1) Full members from each province shall be responsible for nominating and electing their own representatives in the form of a representative to serve on the Council. In the event that this is not feasible due to low number of membership then council may help with nomination and election.

15. Term of Office

- (1) The term of office of Council is 2-years from the close of the Annual General Meeting at which their election is determined until the close of the second succeeding Annual General Meeting or until their successors have been duly elected to the office if the election takes place after the close of the succeeding Annual General Meeting. Following the 2-year term a member of council shall have the option to reoffer.

16. Nominating Procedures

- (1) At the spring Council meeting, nominations for Council may be decided.
- (2) The Council shall nominate at least four persons who are Full members for election on the Executive Council.
- (3) A member unable to attend the Annual General Meeting may mail the nominations to the secretary no later than thirty (30) days prior to the Annual General Meeting.
- (4) At the time of the Annual General Meetings election of Officers and Councillors, nominations may also be taken from the floor.

17. Balloting

- (1) The Secretary shall accept ballots until but not after ten o'clock in the forenoon of the day set for the opening of the Annual General Meeting.

18. Scrutineers

- (1) The Annual General Meeting shall appoint three scrutineers who shall scrutinize the election of Officers at the Annual General Meeting.

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19. Election

- (1) The nominee for election to each position as an Officer who receives the most votes for that position is elected.
- (2) When the scrutineers cannot say that a nominee has been elected as an Officer because two or more nominees have received an equal number of votes, the scrutineers shall place in a ballot box one ballot for each of the nominees who have so received an equal number of votes and the nominee is elected whose ballot is withdrawn from the ballot box by the President, the Secretary, or one of the scrutineers, who shall in the presence of the meeting withdraw the ballot. The ballot withdrawn shall be deemed to be elected.
- (3) The scrutineers shall report the results of the count to the presiding Officer of the Annual General Meeting who shall announce to the meeting the names of the Officers elected.

20. Vacancies on Council

- (1) The Council shall appoint a member to fill for the remainder of the term of office any vacancy occurring among the Council of the Association.

21. Duties of Council

- (1) The Council shall manage the affairs of the Association in accordance with the By-Laws.
- (2) The Association shall make available copies of the By-Laws and other official documentation.
- (3) The Council shall meet:
 - (a) at the call of the President at least two times during its term of office.
 - (b) at the call of the President if two members of the Council make a request to the Secretary for such a meeting.
- (4) Before each meeting of the Council, the Secretary shall send to each member of the Council a notice of the meeting together with the agenda of the business to be transacted at the meeting.
- (5) For the purposes of Council meetings, four members of the Council constitute a quorum.

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- (6) Unless otherwise prescribed in this By-Law, the Council shall be bound by the vote of the majority of the members of the Council present.
- (7) Each member of the Council has one vote on any question and in the event of a tie vote, the presiding Officer shall cast a vote to decide the question.
- (8) The Council may determine votes at its meetings by a show of hands.
- (9) A member of the Council who is unable to attend a meeting of the Council may write to the Secretary setting forth his or her views of any matter on the agenda for the meeting and the Secretary shall lay this correspondence before the Council at the meeting.
- (10) Duties of the Officers and Councillors
 - (a) Every Officer shall perform the following duties and discharge the responsibilities set forth in this By-Law.
 - (b) President and Vice President

Without restricting the generality of the subsection a), the President, or in his/her absence, the Vice President, shall:

 - i. preside at meetings of the Council;
 - ii. preside at general meetings of the Association;
 - iii. be ex-officio a member of all committees;
 - iv. in the absence of the President, if the Vice President is unable to preside at any meeting, a Chair shall be selected from the members present at the meeting.
 - (c) Secretary

Without restricting the generality of subsection a), the Secretary shall:

 - i. present the business for meeting of the Council and for general meeting of the Association;
 - ii. be responsible for keeping a record of all documents of incorporation and all By-Laws and the proceedings of meetings and correspondence of the Council and of general meetings of the Association;
 - iii. prepare for presentation to the Annual General Meeting a report of the other affairs of the Association and the activities of the committees for the preceding year.
 - iv. maintain a Register of Membership containing the names, addresses, and callings of all persons who hold membership in the Association;
 - v. prepare for presentation to the Annual General Meeting a statement of membership of the Association for the preceding fiscal year, which shall be certified by an auditor appointed for the purpose by the preceding Annual General Meeting;

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- vi. manage the application process for new memberships.

(d) Treasurer

Without restricting the generality of subsection a), the Treasurer shall:

- i. attend to the collection of fees and other moneys due to the Association;
- ii. receive such moneys and deposit same in a chartered bank, keeping a proper record of all receipts and disbursements;
- iii. prepare for presentation to the Annual General Meeting a statement of financial affairs of the Association for the preceding fiscal year, which shall be certified by an auditor appointed for the purpose by the preceding Annual General Meeting.
- iv. Work with the Secretary to update the Register of Membership ensuring that membership fees have been recorded.

(e) Media Relations Officer

Without restricting the generality of subsection a), the Media Relations Officer shall:

- i. acts as a media spokesperson on behalf of the Association and direct inquiries to the appropriate point(s) of contact on Council where applicable;
- ii. manage the flow of news, events, employment opportunities and resources pertaining to the industry to members;
- iii. manage and update the social media outlets being used by the Association to communicate with the membership and the public.

(11) Inability to Perform Duties

- (a) Notwithstanding any other provisions of this By-Law, when a Councillor, including the President or Vice President is in the opinion of the Council unable to perform their duties, the Council may meet and may appoint another member of the Council to assume their duties or until the next Annual General Meeting, whichever event occurs first.

(12) Other Committees

- (a) The Council, as it deems necessary from time to time to enable it to conduct the business of the Association, may appoint:
 - i. any other standing committee consisting of persons who hold membership;
 - ii. any other committee consisting of persons whom the Council deems suitable for the purpose.
- (b) when a vacancy occurs on any committee appointed by the Council, it

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may appoint a qualified person to fill the vacancy.

(13) Signing Officers

- (a) For all transactions conducted in the name of the Association, the Treasurer and the President are the signing officers.
- (b) The fiscal year of the Association is from June 1st of each calendar year to May 31st of the next year.

22. Annual General Meeting

- (1) Annual General Meetings of the Association shall be held each year within twelve months after the last preceding Annual General Meeting at a time and place to be fixed by the Council at least sixty (60) days prior to the meeting.
- (2) The Secretary shall issue notices stating the purpose for which the meeting is called, to all members at least thirty (30) days prior to the meeting.
- (3) Ten persons holding membership and who are present shall constitute a quorum at the Annual General Meeting.
- (4) Each member qualified to vote shall be entitled to one vote per matter at a general meeting.
- (5) Votes at the Annual General Meeting shall be determined by a recorded ballot unless a show of hands is requested by a majority of those voting.
- (6) In the event of a tie vote at the Annual General Meeting, the presiding officer shall cast a vote to decide the question.
- (7) Notice of Motion, to be given in the notice calling the meeting, shall be required on all questions.
- (8) Balloting by Mail
 - (a) If any question arises at the Annual General Meeting that is not required by By-Law to be voted on only by persons present at the meeting and in the opinion of the Council the question requires determination by all persons qualified to vote, the questions shall forthwith be submitted to them by the Secretary in the form of a ballot accompanied by a letter fully explaining the issues involved in the question.
 - (b) The Secretary shall accept ballots on the question until but not after the 30th day after the ballots have been sent.
 - (c) The question shall be decided by a majority of two-thirds (2/3) of those voting.

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(d) The Secretary shall report to the membership the result of the vote.

23. Amendments to By-Laws

- (1) When in the opinion of the Council it is necessary to amend the By-Law or when any three persons who hold membership in the Association propose an amendment to the By-Laws, the Secretary shall send to each person qualified to vote the text of the proposed amendment and an explanation together with the notice of the general meeting at which the proposed amendment is to be considered.
- (2) The proposed amendment may be voted on by persons qualified to vote who are present at the general meeting or in accordance with the provisions of Section 22(8).

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APPENDIX 1

GUIDELINES FOR COURSE RECOGNITION FOR MEMBERSHIP APPROVALS

To assist the Membership Committee in determining whether an accredited course is to be recognized by the AAGP under the terms of its By-Law for membership in the Association the following Guidelines may be utilized.

Any accredited course of instruction in a discipline relating to Geomatics and Planning may be considered which includes, but is not limited to, the following subjects and disciplines:

- ☐ AutoCAD
- ☐ Cartographic Design and Compilation
- ☐ Data collection and manipulation
- ☐ Database Management
- ☐ Engineering Technology
- ☐ Environmental Design
- ☐ Field Surveying
- ☐ Foundations of Geographic Information Systems
- ☐ Fundamental Mapping Concepts
- ☐ Global Positioning Systems
- ☐ Graphic Design
- ☐ Geoprocessing
- ☐ Land-use Planning
- ☐ Network, Spatial or 3D analysis
- ☐ Planning Law
- ☐ Project Planning
- ☐ Remote Sensing
- ☐ Statistics and Demographics
- ☐ Surveying
- ☐ Sustainable Community Planning
- ☐ Online Mapping Applications

APPENDIX 2

ELECTRONIC DEVICES POLICY

General

1. The purpose of this policy is to provide guidelines for the purchase, use, return and disposal of electronic devices purchased by the Association for use by Executive Council members.
2. Electronic devices are those purchased by the Association for association related purposes. All electronic devices purchased by the Association remain the property of the Association at all times.
3. Any violation of this policy and its guidelines may, result in the revocation of all electronic device privileges to the member issued the electronic device.

Purchase

4. New laptops, electronic devices and related equipment (e.g. carrying cases) will only be purchased as necessary and in accordance with this policy. The Treasurer will be responsible for purchasing all electronic devices following Executive Council approval.
5. The purchase of a laptop will include the purchase of Microsoft Office (or its successor), security software, Sage50 (or comparable accounting software) and wireless capability.

Laptops

6. Once a laptop is purchased/assigned by the Executive Council, the member who has signed for it is solely responsible for it.
7. Any member in possession of the Association laptop will:
 - (a) Use the laptop primarily for Association business, in a reasonable manner, and be present at all times if the laptop is used by another Association member;
 - (b) Not permit the use of the laptop by a non-member of the Association, including family members;
 - (c) Not purchase, download or install additional software without the express permission and approval of Executive Council;

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- (d) Take reasonable care at all times to ensure the security of the laptop and the privacy of all information contained on the laptop.

Return of Device

- 8. An electronic device is to be returned to the Executive Council within one (1) week of:
 - (a) Executive Council requesting its return; or
 - (b) the member in possession of the device no longer holding office; or
 - (c) a member in possession of a device determining they no longer needs the device; or
 - (d) any repairs being needed.
- 9. The loss or theft of an electronic device will be reported immediately to the President and at least one additional member of Executive Council.

Disposal and Protection of Data

- 10. When an electronic device has been returned to the Executive Council, it will be assessed by a professional as to whether it should be repaired or replaced.
- 11. Where it is determined a device should be replaced, a device will have all data, including all documents and e-mails, wiped from it by an appropriate professional.
- 12. Replaced devices will first be offered to be donated to a charitable organization. If no charitable organization can be found to take the device, it will be disposed of at a recycling depot.